



United States
Attorney's Office
Middle District of Tennessee



Clay County Pharmacy Investigation and Prosecution Ends in Guilty Pleas

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For Immediate Release

U.S. Attorney's Office, Middle District of
Tennessee

Three Others Were Previously Convicted for Participating in the Same Conspiracy

NASHVILLE – Thomas K. Weir, 65, majority owner of Oakley Pharmacy d/b/a Dale Hollow Pharmacy and Clay County Xpress Pharmacy ("Xpress Pharmacy"); William L. Donaldson, 65, former owner and pharmacist of Dale Hollow Pharmacy (then known as Donaldson Pharmacy); and Pamela Spivey, 55, co-owner of Xpress Pharmacy (all of Celina, Tennessee), have pleaded guilty a week before a criminal trial was set to begin in Cookeville, Tennessee, announced Robert E. McGuire, Acting United States Attorney for the Middle District of Tennessee.

Weir pleaded guilty to conspiracy to distribute and dispense controlled substances, a conspiracy to commit health care fraud, and a conspiracy to violate the Anti-Kickback Statute. Donaldson pleaded guilty to conspiracy to distribute and dispense controlled substances and a conspiracy to violate the Anti-Kickback Statute. Spivey pleaded guilty to a conspiracy to distribute and dispense controlled substances and a conspiracy to commit health care fraud.

A minority owner of Dale Hollow Pharmacy, Charles Robert "Bobby" Oakley, 74, of Manchester, Tennessee, and the pharmacists-in-charge of each pharmacy; John Polston, 64, of Tompkinsville, Kentucky; and Michael Griffith, 41, of Mount Juliet, Tennessee, all previously pleaded guilty.

The guilty pleas end a years-long investigation and prosecution involving the pharmacies in the small town of Celina, Tennessee, who between 2014 and 2019 dispensed large volumes of controlled substances to patients despite obvious signs of abuse and diversion by the patients and other indications that the prescriptions were not for legitimate medical purposes.

In May and June of 2016, diversion investigators with the Drug Enforcement Administration ("DEA") inspected Dale Hollow Pharmacy and in 2017, Weir, Oakley, and Polston signed a Memorandum of Agreement with the DEA related to violations of the regulations governing the dispensing of controlled

substances. Dale Hollow Pharmacy, through the conspirators, violated that agreement, and the dispensing at Dale Hollow Pharmacy and neighboring Clay County Xpress Pharmacy continued to increase, as did the obvious signs that patients were abusing and selling the substances, including dispensing to patients who traveled long distances together to fill controlled substances prescriptions in the small town.

The conspirators, through Dale Hollow Pharmacy and Xpress Pharmacy, also submitted false and fraudulent claims to Medicare Part D plans, and to TennCare, for controlled substances dispensed to Medicare and TennCare beneficiaries. The conspirators submitted claims for payment to Medicare and TennCare for medically unnecessary combinations of controlled substances that they knew were highly sought after and abused.

Weir and Donaldson also pleaded guilty to a kickback scheme that involved Donaldson receiving kickbacks to recruit patients to Dale Hollow Pharmacy. The conspirators also paid patient co-payments and gave patients a fake currency called "Monkey Bucks" that patients could exchange for cash. Weir also paid patients cash in exchange for filling their prescriptions at Dale Hollow Pharmacy that were then billed to Medicare and TennCare.

Weir has agreed as part of his guilty plea to pay \$1,419,974.00 in restitution to Medicare and TennCare, and to forfeit properties associated with the pharmacies.

Weir and Spivey will be sentenced on January 5, 2026. Donaldson will be sentenced on January 22, 2026. At sentencing, Weir and Spivey each face a maximum penalty of ten years on the conspiracies to distribute and dispense controlled substances and health care fraud. Donaldson faces a maximum penalty of twenty years on the conspiracy to distribute and dispense controlled substances. Weir and Donaldson each face a maximum of five years on the conspiracy to violate the Anti-Kickback Statute. Weir and Spivey each face a potential fine between \$250,000 and \$500,000. Donaldson faces a potential fine between \$250,000 and \$1 million.

This case was investigated by the DEA; the U.S. Department of Health & Human Services-Office of Inspector General; and the Tennessee Bureau of Investigation; with the assistance of the Clay County Sheriff's Office and Celina Police Department. Assistant U.S. Attorneys Sarah K. Bogni and Zachary T. Hinkle prosecuted the cases. Assistant U.S. Attorney Ellen Bowden-McIntyre is handling parallel civil litigation.

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